Maharashtra State Electricity ... vs M.E.R.C on 4 January, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Dated : 4th January , 2011
Present: Hon'ble Mr. Rakesh Nath, Technical Member
Hon'ble Mr. Justice P.S. Datta Judicial Member

Appeal 90 of 2010

Maharashtra State Electricity Distribution Co. Ltd. ... Appellant(s)
Versus
M.E.R.C. ....Respondent(s)

Counsel for the Appellant(s): Mr. Devadatt, Mr. Abhisekh Mitra

Counsel for the Respondent(s): Mr. Prasanjit Keswani for R -2

ORDER

The learned Counsel for the Appellant stated that the concept of deemed billing date as the 30 days from the JMR a decided by the State Commission in the Impugned Order is not applicable in this particular case as, the Respondent -2 had actually raised the bill. This has not been disputed by the Respondent.

In view of the stand taken by Respondent -2 and the submission made by Appellant , nothing survives in this Appeal and accordingly the Appeal is disposed of. No order as to cost.

(Justice P.S. Datta) ((Rakesh Nath)
Judicial Member Technical Member

PK/KS